

24-275 PARRISH V. UNITED STATES

DECISION BELOW: 74 F.4th 160

LOWER COURT CASE NUMBER: 20-1766

QUESTION PRESENTED:

Ordinarily, litigants must file a notice of appeal within 30 or 60 days of an adverse judgment. 28 U.S.C. § 2107(a)-(b). Under 28 U.S.C. § 2107(c) and

Fed. R. App. P. 4(a)(6), however, district courts can reopen an expired appeal period when a party did not receive timely notice of the judgment. The Courts of Appeals have divided about whether a notice of appeal filed after the expiration of the ordinary appeal period but before the appeal period is reopened becomes effective once reopening is granted.

The Question Presented is whether a litigant who files a notice of appeal after the ordinary appeal period expires must file a second, duplicative notice after the appeal period is reopened

MICHAEL R. HUSTON, ESQUIRE, OF WASHINGTON, D. C., IS INVITED TO BRIEF AND ARGUE THIS CASE, AS *AMICUS CURIAE*, IN SUPPORT OF THE JUDGMENT BELOW.

CERT. GRANTED 1/17/2025